

An Act

ENROLLED SENATE
BILL NO. 2028

By: Wingard, Bullard, Murdock,
Deevers, Jett, and Frix of
the Senate

and

Hardin of the House

An Act relating to the Oklahoma Milk and Milk Products Act; amending 2 O.S. 2021, Section 7-413, which relates to violations; expanding violations; requiring warning labels on containers of raw or unpasteurized milk and raw milk products; directing the Oklahoma Department of Agriculture, Food, and Forestry to develop and produce warning labels; requiring warning label to be affixed to certain products prior to sale or distribution; authorizing the Oklahoma Department of Agriculture, Food, and Forestry to promulgate rules; amending 2 O.S. 2021, Section 7-414, which relates to construction of act; allowing for certain sales of ungraded raw milk and raw milk products; restricting the advertisement of the sale of ungraded raw milk; increasing average monthly yield for incidental sales; providing for codification; and declaring an emergency.

SUBJECT: Raw milk

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 7-413, is amended to read as follows:

Section 7-413. It shall be unlawful for any person to knowingly, willfully, or recklessly:

1. Attempt to produce, haul, process, or distribute milk or milk products without an appropriate and valid permit;

2. Sell, offer, or expose for sale as Grade A any adulterated or misbranded milk or milk product;

3. Sell, offer, expose for sale, or serve milk and milk products which have not been maintained at or below the temperature specified by the State Board of Agriculture;

4. Sell, offer, expose for sale, or serve raw milk or raw milk products without notifying the consumer that the product is not licensed, regulated, or inspected;

5. Sell, offer, expose for sale, or serve raw milk or raw milk products without labeling the container of such raw milk or raw milk products to indicate to the consumer that the product is raw or unpasteurized milk and the date the milk was filled in accordance with Section 2 of this act;

6. Dip or ladle Grade A milk and milk products;

~~5.~~ 7. Transfer Grade A milk and milk products at any location other than a permitted Grade A facility designed and equipped for such purpose;

~~6.~~ 8. Prevent, interfere, or attempt to impede the Commissioner of Agriculture from investigating and enforcing the Oklahoma Milk and Milk Products Act;

~~7.~~ 9. Sell or serve Grade A milk and milk products from other than the individual container, or approved bulk dispenser, received from the distributor; or

~~8.~~ 10. Violate any provision of the Oklahoma Milk and Milk Products Act.

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 7-413.1 of Title 2, unless there is created a duplication in numbering, reads as follows:

A. Any container of raw milk or raw milk products sold, offered for sale, or distributed shall be labeled with a visible warning label and the date the milk was filled in accordance with this section.

B. The Oklahoma Department of Agriculture, Food, and Forestry shall produce a warning label and shall make that warning label available to all producers selling raw or unpasteurized milk through the Department's website. The warning label shall include statements that are substantially similar to the following:

1. Raw (unpasteurized) milk and raw milk products are not licensed, regulated, or inspected and may contain harmful bacteria that can cause serious illness; and

2. Pregnant women, unborn babies, children, the elderly, and people with weakened immune systems are at higher risk of serious illness from consuming raw milk.

C. Every producer of raw or unpasteurized milk shall affix the warning label described in subsection B of this section prior to the sale or distribution of such milk or milk products.

D. The Department shall promulgate rules necessary to implement the provisions of this section including, but not limited to, the size, placement, and content of the warning label.

SECTION 3. AMENDATORY 2 O.S. 2021, Section 7-414, is amended to read as follows:

Section 7-414. A. The provisions of the Oklahoma Milk and Milk Products Act shall not be construed to:

1. Include incidental sales of ungraded raw milk or raw milk products directly to consumers at the farm where the ungraded raw milk or raw milk products ~~is~~ are produced;

2. Preclude the advertising of the incidental sale of goat milk; ~~and~~

3. Preclude the advertising of the sale of ungraded raw milk and raw milk products; and

4. Prohibit any farmer or producer from making cheese using milk or cream produced on the farm of such farmer or producer.

B. For purposes of this section, incidental sales of ~~goat~~ milk are those sales where the average monthly number of gallons sold does not exceed ~~one hundred (100)~~ one thousand five hundred (1,500).

SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 16th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 4th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____